TRYNESS KABITI
versus
LT. COLONEL NCUBE
and
LT. COLONEL MALAMBA, ZDF DIRECTOR FOR AGRICULTURE
and
ZNA OFFICER CHIRWANEMHUKA
and
ZNA COMMANDER, N.O.
and
OFFICER-IN-CHARGE ZRP MARLBOROUGH, N.O.
and
ADDITIONAL SHERIFF BINDURA, N.O.

HIGH COURT OF ZIMBABWE
WAMAMBO J
HARARE; 24 July 2026

Urgent Chamber Application

L Kovi.for the applicant
L T Muradzikwa and *A Zikiti*, for the 1st to 5th respondents
No appearance for the sixth respondents

WAMAMBO J:

This is an urgent chamber application for a prohibitory interdict. The applicant is the holder of rights over the Remaining Extent of Ingleborough Farm, situate in the Mazowe District of Mashonaland Central Province, measuring approximately 100 hectares. In case number R-HCH4996/22, this court confirmed her right to the land and her entitlement to evict the illegal occupiers therefrom. In case number HCH5414/25, the Officer-in-Charge ZRP Marlborough was directed to attend to the security needs of the Additional Sheriff in executing that order.

The papers show that on 9 April 2026 the 6th respondent, under police protection, proceeded to execute the eviction order at the farm. The applicant alleges that the first to third respondents, in the company of uniformed soldiers, blocked the process, threatened those present, forced the suspension of execution and caused the return of goods already removed.

That account is materially confirmed by the sheriff's return of service, which records that the sheriff was coerced to suspend execution, that the road and vehicles were blocked, that violence was threatened and that he was only allowed to leave after returning the removed goods.

That conduct is plainly inimical to the Constitution and the rule of law. Section 164 of the Constitution provides that no person or institution may interfere with the functioning of the courts, and that an order or decision of a court binds the State, all persons, and all governmental institutions and agencies to which it applies, and must be obeyed by them. Sections 206, 208, 211, 212 and 219 equally require the security services to act in accordance with the Constitution and the law, to uphold the Constitution, and to maintain law and order without fear or favour. Parties who take issue with an extant court order must approach the court; they may not resort to force or self-help.

The requirements for interim interdictory relief are settled. The applicant must show a prima facie right, a well-grounded apprehension of irreparable harm, the absence of an adequate alternative remedy, and that the balance of convenience favours the grant. The broader interdict jurisprudence in this jurisdiction, , and later cases, is to the same effect.

In my view, the applicant has satisfied those requirements. Her right is not merely prima facie; it is grounded in prior extant court orders. The apprehended injury is immediate and real because the execution process has already been disrupted by force and the applicant's access to the farm and farming operations has been impeded. There is no alternative remedy that can offer equivalent and immediate protection. The balance of convenience overwhelmingly favours preserving lawful execution and vindicating obedience to court orders.

For completeness, the final order sought is that the first, second and third respondents be ordered and directed to follow due process of law if they have any concerns with respect to the applicant's court-confirmed lawful allocation by the State of the Remaining Extent of Ingleborough Farm situate in the Mazowe District of Mashonaland Central Province measuring 100 hectares, and that they pay costs on the legal practitioner and client scale. The interim relief sought, pending confirmation or discharge of the final order, is that the first, second and third respondents be interdicted from interfering with the 5th and 6th respondents' execution of the court order under R-HCH4996/22, being the eviction of the defendants in that matter from the said farm; that they refund the applicant the costs of the

botched 9 April 2026 execution within seven days of the grant of the order; and that they pay the costs of this application on the legal practitioner and client scale.

Accordingly, the interim relief as prayed for is hereby granted.

Kanoti and Partners, applicant's legal practitioners
Civil Division of the Attorney General, respondent's legal practitioner

WAMAMBO J:……